



REPUBLIC OF THE PHILIPPINES

City of San Juan

METRO MANILA

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OFFICE OF THE SANGGUNIANG PANLUNGSOD

CITY ORDINANCE NO. 5

Series of 2022

AN ORDINANCE AUTHORIZING THE CITY GOVERNMENT OF SAN JUAN TO ISSUE BARANGAY CLEARANCES AND COLLECT CORRESPONDING FEES IN THE APPLICATION FOR ANY BUSINESS, LOCATIONAL AND CONSTRUCTION PERMITS TRANSACTIONS AND TO REMIT THE COLLECTED FEES TO THE RESPECTIVE BARANGAYS SUBJECT TO CONDITIONS STATED UNDER.

Sponsored by: Councilors Herbert O. Chua, Rolando M. Bernardo, Arthur Alfredo E. Aquino, Ariel I. Atad, Bea Celine D. De Guzman-Cabatbat, Raissa H. Laurel-Subijano, Michael Christopher R. Mathay and Mary Joy A. Ibuna Leoy
and co-sponsored by: Councilors Paul Anthony D. Artadi, Jannah A. Ejercito, Vincent Rainier M. Pacheco, Kit R. Peralta and Victor Jose L. Reyes

WHEREAS, Republic Act 11032 (EODB ACT of 2018) or, otherwise known as "An Act Promoting Ease of Doing Business and Efficient Delivery of Government Services was signed into law seeks to make the process of putting up and running a business in the Philippines easier and more efficient; -

WHEREAS, Section 11(f) of RA 11032 provides that "Barangay clearances and permits related to doing business shall be applied, issued, and collected at the city/municipality in accordance with the prescribed processing time of said Act. *Provided*, That the share in the collections shall be remitted to the respective barangays";

WHEREAS, Barangays in the City of San Juan, Metro Manila, enacted their own Barangay Resolutions to authorize the City of San Juan Metro Manila, to issue barangay clearance and collect corresponding barangay clearance fee in the application for any business, locational and construction permits subject to the remittance of the aforesaid fees to the barangay and the condition hereunder;

WHEREAS, there is a need to streamline/simplify the process of business registration in the City to provide a more efficient and effective revenue collection and to promote a friendlier and safer atmosphere for taxpayers and investors;

WHEREAS, when regulations are simple and transparent, entrepreneurs need not to suffer from red tape and time consuming transactions.

NOW THEREFORE, BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD OF THE CITY OF SAN JUAN, METRO MANILA, IN A SESSION DULY ASSEMBLED THAT:

SECTION 1. COVERAGE - This policy applies only to the issuance of Barangay Clearance for business permit, construction permit and locational clearance (as a requirement for the issuance of building permit) at the City/Municipality. Other clearances for other purposes shall still be obtained at the Barangay.

SECTION 2. DEFINITION OF TERMS - The words and phrases used in this ordinance are hereby defined as follows:

- A. Barangay Clearance** - refers to any and all documents issued by the barangays with or without corresponding fees as defined in their ordinances relative to or in relation to the issuance of business permit, construction permit and locational/zoning clearance by the city or any other permit as may be required. (IRR OF RA 11032)
- B. Barangay Clearance Fees** - is an amount imposed by the barangays through an ordinance and collected by the city in relation to the issuance of business permit, construction permit and locational clearance by the city.
- C. Business Permit** - is a document that must be secured from the city government through its Business Permits and Licensing Office (BPLO), for a business to legally operate in the locality. (IRR of RA 11032)
- D. Locational Clearance** - is a clearance issued by the Zoning Administrator/Zoning Officer to a project that is allowed under the provisions of an ordinance of a particular City. It is a requirement for the issuance of Building Permit. (House and Land Use Regulatory Board Comprehensive Land Use Plan Guidebook)
- E. Building permit** – refers to a document issued by the City Building Official to an owner/applicant to proceed with the construction, installation, addition, alteration, renovation, conversion, repair, moving, demolition or other work activity of a specific project/building/structure or portions thereof after accompanying principal plans, specifications and other pertinent documents with the duly notarized application are found satisfactory and substantially conforming with the National Building Code of the Philippines (NBCP) and its Implementing Rules and Regulation. (DILG-DPWH-DICT-DTI-JMC 2018-01)

SECTION 3. AUTHORITY TO COLLECT BARANGAY CLEARANCE FEE OF BUSINESS RELATED TRANSACTIONS - The City Government of San Juan is given the authority to collect Barangay Clearance Fees subject to the remittance of the same to the concerned Barangay.

SECTION 4. RATE OF BARANGAY CLEARANCE FEE TO BE COLLECTED - The rate of Barangay Clearance Fee to be collected by the City for the issuance of clearance shall be computed in accordance with the subject latest Barangay Revenue Ordinance submitted and approved by the Sanguuniang Panlungsod or by operation of law.

SECTION 5. REPORTING AND REMITTANCE - The City shall remit the Barangay Clearance Fee collected to the subject Barangay not later than seven (7) working days of the ensuing month with the list of the issued and paid Building and Business Permit.

SECTION 6. SEPARABILITY CLAUSE - If for any reason, a part of this Ordinance is declared illegal or invalid, other parts or provisions hereof which are not affected thereby shall remain valid and in full force and effect.

SECTION 7. REPEALING CLAUSE - All previous Ordinance and rules/ regulations which are inconsistent with the provisions of this ordinance are hereby deemed, modified or repealed accordingly.

SECTION 8. The authority, issuance and approval hereof is subject to and conditioned upon compliance to certain restrictions and to all existing laws, circulars, rules and regulations.

SECTION 9. EFFECTIVITY CLAUSE - This Ordinance shall take effect upon approval.

(participated thru video conferencing)

ARIEL I. ATAD
City Councilor

HERBERT O. CHUA
City Councilor

ARTHUR ALFREDO E. AQUINO
City Councilor

(participated thru video conferencing)
PAUL ANTHONY D. ARTADI
City Councilor

(participated thru video conferencing)
BEA CELINE D. DE GUZMAN-CABATBAT
City Councilor

(participated thru video conferencing)
MARY JOY A. IBUNA-LEOY
City Councilor

(participated thru video conferencing)
MICHAEL CRISTOPHER R. MATHAY
City Councilor

(participated thru video conferencing)
VICTOR JOSE L. REYES
City Councilor

KIT R. PERALTA
Sergeant-at-Arms
City Councilor

(participated thru video conferencing)
JANNAH A. EJERCITO
Minority Floor Leader
City Councilor

(participated thru video conferencing)
VINCENT RAINIER M. PACHECO
Assistant Majority Floor Leader
City Councilor

(participated thru video conferencing)
RAISSA H. LAUREL-SUBIJANO
Majority Floor Leader
City Councilor

ROLANDO M. BERNARDO
President Pro-Tempore
City Councilor

I HEREBY CERTIFY THAT THIS ORDINANCE
HAS BEEN DULY APPROVED BY THE
SANGGUNIANG PANLUNGSOD ON **FEBRUARY 7, 2022.**

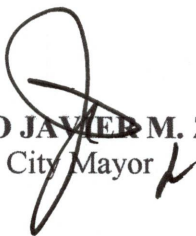
RIA P. ESTRELLA-PADILLA
City Government Department Head II
Secretary, Sangguniang Panlungsod



ATTESTED:


JOSE WARREN P. VILLA
Presiding Officer
City Vice-Mayor

APPROVED:


FRANCISCO JAVIER M. ZAMORA
City Mayor

